

Loney v. Super. Ct. (1984) 160 Cal.App.3d 719, 724 [“the cross-complaint of petitioners was properly stricken because leave of court was not obtained prior to its being filed”].)

Finally, Cross-Complainant “requests that, to the extent leave was required, the Court grant it now in the interest of justice.” (Opposition at 2:7-9.) That request, however, is not properly before the Court. Due process requires notice to all parties of any such request and an opportunity to oppose.

Based on the foregoing, Mr. Coppola’s Motion to strike the FACC is GRANTED.

[3] CROSS-DEFENDANT FRANCIS FORD COPPOLA’S DEMURRER TO KERRI L. BEEKER’S FIRST AMENDED CROSS-COMPLAINT

TENTATIVE RULING: The demurrer is MOOT.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Cross-Defendant Francis Ford Coppola demurs, pursuant to Code of Civil Procedure Section 430.10, to the First Amended Cross-Complaint (FACC) filed by Cross-Complainant Kerri L. Beeker.

In light of the Court’s concurrent order striking those portions of the FACC that purport to state claims against Mr. Coppola, the instant demurrer is MOOT.

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JPMorgan Chase Bank N.A. v. Noemi M. Leija

25CV002053

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH BE DEEMED ADMITTED

TENTATIVE RULING: The motion is GRANTED. Plaintiff is directed to provide notice of entry of order.

Plaintiff moves, pursuant to Code of Civil Procedure sections 2033.010 and 2033.280,² for an order that truth of all specified facts in the Request for Admissions (“RFAs”), Set One propounded upon Defendant on December 10, 2025 be deemed admitted. The Motion is made on the grounds that Defendant failed to serve timely responses to the RFAs.

“If a party to whom requests for admission are directed fails to serve a timely response, . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted.” (§ 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (§ 2033.280, subd. (c).)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Brian Langedyk (“Langedyk Decl.”) at ¶¶ 2-3, Exh. 1.) As such, the Court orders that the genuineness of the documents and the truth of the matters specified in the RFAs are deemed admitted.

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In The Matter of Anthony Heriberto Trejo

26CV000882

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on April 28, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court’s file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to July 14, 2026, at 8:30 a.m. in Dept. A to provide any publisher time to file the POP.

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.